

HISTORY HACK · DOCUMENT-BASED QUESTION

Document-Based Question

US.78 — Analyze civil and voting rights legislation, including the Civil Rights Act of 1964, the Voting Rights Act of 1965, the Civil Rights Act of 1968 (i.e., Fair Housing Act), and the 24th Amendment. (T.C.A. § 49-6-1006)

Name _____ Class _____ Date _____

Directions. Analyze the following two primary sources using the HIPP framework (Historical context, Intended audience, Purpose, Point of view) for each document. Then construct a multi-paragraph argument responding to the central question: How did the Voting Rights Act of 1965 address the structural barriers to Black political participation that the Civil Rights Act of 1964 had left intact, and what does the contrast between these two documents reveal about the relationship between legal rights and structural power?

The sources

Document 1

Excerpt from the Civil Rights Act of 1964, Title I (Voting Rights), Section 101. Source: Civil Rights Act of 1964, Pub. L. 88-352, 78 Stat. 241, July 2, 1964; National Archives, [archives.gov](https://www.archives.gov).

“No person acting under color of law shall — (A) in determining whether any individual is qualified under State law or laws to vote in any Federal election, apply any standard, practice, or procedure different from the standards, practices, or procedures applied under such law or laws to other individuals within the same county, parish, or similar political subdivision who have been found by State officials to be qualified to vote; (B) deny the right of any individual to vote in any Federal election because of an error or omission on any record or paper relating to any application, registration, or other act requisite to voting...”

SOURCE IT — DOCUMENT 1

H — Historical context

What was happening when this was made?

I — Intended audience

Who was meant to read or hear it?

P — Purpose

What was it trying to make the audience do or think?

P — Point of view

Who is speaking, and how does that shape it?

Document 2

Excerpt from the Voting Rights Act of 1965, Sections 2, 4, and 5. Source: Voting Rights Act of 1965, Pub. L. 89-110, 79 Stat. 437, August 6, 1965; National Archives, [archives.gov](https://www.archives.gov).

“SEC. 2. No voting qualification or prerequisite to voting, or standard, practice, or procedure shall be imposed or applied by any State or political subdivision to deny or abridge the right of any citizen of the United States to vote on account of race or color... SEC. 4(a). [States and counties covered under the formula — those with a history of low voter registration and usage of tests — must suspend any literacy test or similar device used as a prerequisite for voting]... SEC. 5. Whenever a State or political subdivision [covered by the Act] shall enact or seek to administer any voting qualification or prerequisite to voting, or standard, practice, or procedure with respect to voting different from that in force or effect on November 1, 1964, such State or subdivision shall submit any such proposed change... to the Attorney General of the United States or... to the United States District Court for the District of Columbia for a declaratory judgment that such change neither has the purpose nor will have the effect of denying or abridging the right to vote on account of race or color.”

SOURCE IT — DOCUMENT 2

H — Historical context

What was happening when
this was made?

I — Intended audience

Who was meant to read or
hear it?

P — Purpose

What was it trying to make
the audience do or think?

P — Point of view

Who is speaking, and how
does that shape it?

The question

Using both documents and your knowledge of the Civil Rights Movement, construct a multi-paragraph argument that (1) identifies the specific enforcement mechanisms in Document 1 and explains why they were insufficient to eliminate Black voter disenfranchisement in practice, (2) analyzes the three key innovations in Document 2

1. the Section 2 general prohibition, Section 4's literacy test suspension, and Section 5's preclearance requirement
2. and explains how each addressed a specific structural barrier that Document 1 left intact, (3) connects the passage of the VRA to the specific campaigns and events between 1964 and 1965 (including the Selma to Montgomery marches and Bloody Sunday) that created the political urgency for stronger legislation, and (4) evaluates whether the VRA of 1965 represented a fundamental shift in the federal-state relationship regarding voting rights

Plan your answer

Your claim	
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Source	Evidence you will use	Why it supports your claim
Document 1		
Document 2		
Outside knowledge		

Write your response

